

HAGER & SCHWARTZ, P.A.
ATTORNEYS AT LAW

John S. Hager, Esq.
Brett M. Schwartz, Esq.

Volusia: (386) 449-8118
Broward: (954) 533-3696
Miami: (305) 500-9959
Facsimile: (888) 633-7595

[REDACTED]

Sent via e-mail to

[REDACTED]

Mr. [REDACTED]

RE: RETAINER AGREEMENT

Dear Mr. [REDACTED],

Thank you for entrusting Hager & Schwartz, P.A. and its associated attorneys (hereinafter “Law Firm” or “the Firm”) to provide legal services to client, [REDACTED], (hereinafter “Client”). This letter shall set forth the scope of our engagement, confirm that we are in mutual agreement regarding representation, set forth the financial arrangements and other terms, and verify your approval of these things, as follows:

1. **Scope of Engagement:** The Firm will represent Client, [REDACTED], in [REDACTED] County for [REDACTED]
2. **Fees:** As compensation for Law Firm’s services, the fee for the matter is \$ [REDACTED], which is deemed earned upon receipt and non-refundable. Client shall pay \$ [REDACTED] today and the balance is due within 30 days (\$ [REDACTED]). A trial fee of \$ [REDACTED] shall be due and owing should the case proceed to trial.

The Firm shall have no obligation to provide services to Client until and unless the fixed fee is paid as outlined above. The fixed fee is deemed earned upon payment to the Firm, and no portion of it will be refunded. **Client agrees that Law Firm shall be entitled to withdraw if the retainer fees or trial fees are not paid timely in accordance with this Agreement.**

Client acknowledges that the basis for computing attorney fees has been explained to the client and that attorney compensation is based on time, labor, novelty and difficulty of the legal matter, time limitations imposed, and the reputation, experience and ability of the attorney. No guarantee

as to outcome has been made by the attorney. This fee does not include appeal or re-trial if such should become necessary nor does it include costs of litigation as may become necessary.

3. **Participation or Assistance of Other Attorney:** I, [REDACTED], client, agree that an attorney: (1) other than the undersigned attorney; and (2) who is or is not employed by Hager & Schwartz, P.A., may, without prior approval, render any of the following services to assist in the resolution of the legal matter(s) for which the undersigned attorney was retained: (1) appearances at pre-trial hearings; (2) participation in a trial; (3) assistance with legal research or other out-of-court matters; (4) conducting depositions; (5) any other matter necessary to assist in the resolution of the legal matter(s) for which the undersigned attorney was retained. This will be at no additional costs to the client. The primary attorney will be John S. Hager, Esq. Specifically, Brett Schwartz, Esq. may appear on behalf of the attorney at a non-evidentiary hearing.

4. **Costs & Fees:** Client agrees to pay all costs and investigative fees that are required for the adequate preparation of client's case. The CLIENT is responsible for all costs incurred in representing the client, in investigating the client's case, and in litigating the client's case. The costs are separate and apart from the attorney's fees. Costs include, but are not limited to, filing fees, expert witness fees, deposition fees, witness fees, mediation fees, summons fees, sheriff's fees, subpoena fees, court reporter fees, mileage, long distance telephone charges, and photocopy charges. Costs will be billed prior to incurring. Any unpaid balance which remains due after thirty (30) days will accrue interest charges at a rate of ten percent (10%) annually.

Client understands that depositions may have to be taken in this matter. If Attorney requests that depositions be taken, and Client agrees to such request, a retainer in the amount of \$500 will be required prior to the depositions being set. Any funds remaining from the \$500 will be immediately disbursed to Client at the conclusion of the case. If additional money is needed for depositions, and Client agrees with the taking of the depositions, that money is due immediately. Client understands that no depositions will be taken unless client pays the retainer for depositions.

5. **Future Services:** Should additional services be requested or required beyond those described in paragraphs one and two, above, additional fees will be charged, and these must be the subject of a separate written Retainer Agreement. Law Firm's duty to represent Client ends when the case is dismissed, resolved by plea agreement, or following a trial.

6. **Best Efforts:** Client agrees to use his or her best efforts in cooperating with all members of the Firm in providing all relevant information to assist in the preparation of Client's defense. Law Firm, and each of its employees, associated attorneys, and independent contractors, agrees to represent Client diligently and with their best efforts. I understand that my cooperation, as the client, is very important. I have been informed that I must keep the firm informed immediately of any change of address, phone number, employment and circumstances. I understand that full disclosure of all facts is essential to enable the firm to properly represent me. I will promptly fill

out and return all papers sent to me, and will provide all documentation required or requested by the firm. I will also make all appearances as required by the court, or as requested by the firm, and will give the firm at least 24 hours notice if I cannot make any such appearance. If I fail to do so, I agree that the firm shall have the right to withdraw from representing me.

7. **Modification:** This Retainer Agreement contains the entire understanding of the parties as to legal representation of Client by the Firm, and may be modified only by an instrument in writing signed by all parties.

8. **Costs of Collection:** In the event of suit being required to collect fees and costs, the attorney shall be entitled to reasonable attorney fees and costs of collection. Client agrees that jurisdiction is proper in _____ County, Florida should litigation arise as to this contract. Prevailing party shall be entitled to all fees and costs expended for litigation of fees.

9. **No Guarantee:** Client agrees that no representations have been made regarding the outcome of the case, and that any opinions expressed do not constitute any guarantee as to outcome.

10. **Power of Attorney:** Client grants attorney a Power of Attorney to execute all documents connected with this case, including pleading, contracts, settlement agreements, drafts, checks, commercial paper, verifications, dismissals, and other documents that the client could otherwise execute. Client shall have to approve any plea agreement.

11. **Other Contacts:** I, _____, client, understand that the office of Hager & Schwartz, P.A. would only like to communicate the fundamentals of my case with myself. However I, _____, the undersigned client, am giving the office of Hager & Schwartz, P.A. my permission to speak with the following person(s) about my case:

12. **Termination of Contract:** I, _____, client, understand that termination of this contract is reserved by the undersigned attorney for reasons such as: nonpayment of fees, costs, or expenses when due, or retainer on demand; lack of communication or cooperation; irreconcilable differences and subsequent determination of non-merit or personal conflict preventing effective representation. I, _____, client, understand that I may cancel this agreement at any time, for any reason, without necessity of any reason, by notifying the attorney in writing to immediately terminate representation in my case and to perform no further legal services on my behalf. This notice must be in writing, dated and signed by myself, and must be e-mailed to Hager & Schwartz, P.A. to tle@defendyourcase.com, faxed to (888) 633-7595 or hand delivered to the attorney or office located at 210 South Beach St., Suite 202, Daytona Beach, FL 32124, to become effective.

13. **Entire Agreement:** This Agreement, along with any exhibits, appendices, addenda, schedules, and amendments hereto, encompasses the entire agreement of the parties, and supersedes all previous understandings and agreements between the parties, whether oral or written. The parties hereby acknowledge and represent, by affixing their hands and seals hereto, that said parties have not relied on any representation, assertion, guarantee, warranty, collateral contract or other assurance, except those set out in this Agreement, made by or on behalf of any other party or any other person or entity whatsoever, prior to the execution of this Agreement.

If this letter correctly sets forth your understanding of the services to be provided to you by Hager & Schwartz, P.A., please sign this letter where indicated below and return it to us. If you have any questions about anything contained herein, please let us know without delay. Thank you once again for the confidence you express by allowing us to assist in your case.

Very truly yours,

HAGER & SCHWARTZ, P.A.

A Professional Corporation

John Hager

JOHN HAGER, ESQ.

Attorney at Law

I have read and understood the foregoing and agree to and accept each of the terms and conditions.
